



**U.S. Citizenship  
and Immigration  
Services**

**Non-Precedent Decision of the  
Administrative Appeals Office**

In Re: 36193309

Date: JAN. 16, 2025

Appeal of California Service Center Decision

Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Religious Worker)

The Petitioner seeks classification as a special immigrant religious worker to perform services as a family ministry department director for [REDACTED]. This fourth preference immigrant classification allows non-profit religious organizations, or their affiliates, to employ foreign nationals as ministers, in religious vocations, or in other religious occupations in the United States. Immigration and Nationality Act (the Act) section 203(b)(4), 8 U.S.C. § 1153(b)(4).

The Director of the California Service Center denied the petition, concluding that the record did not establish that the Petitioner had been continuously employed as a religious worker in a full-time, compensated position for the two years immediately preceding the filing of the petition. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will withdraw the Director's decision and remand the matter for entry of a new decision consistent with the following analysis.

**I. LAW**

Non-profit religious organizations may petition for foreign nationals, or a foreign national may petition on their own behalf, to immigrate to the United States to perform full-time, compensated religious work as ministers, in religious vocations, or in religious occupations. The foreign national must meet certain eligibility criteria, including membership in a religious denomination and continuous religious work experience for at least the two-year period before the petition filing date. *See generally* section 203(b)(4) of the Act (providing classification to qualified special immigrant religious workers as described in section 101(a)(27)(C) of the Act, 8 U.S.C. § 1101(a)(27)(C).

Specifically, the foreign national must have been working continuously in a full time, compensated status in one of the three types of qualifying positions, either in the United States or abroad, for at least the two-year period immediately preceding the filing of the petition. If the foreign national gained this experience in the United States, the evidence of their work experience must show that they

received salaried compensation, non-salaried compensation, or provided for their own support and that of any dependents. 8 C.F.R. §§ 204.5(m)(4), (11).

A religious occupation is one which:

- Is recognized by the denomination as a religious occupation;
- The duties primarily relate to a traditional religious function;
- The duties primarily relate to, and clearly involve, inculcating or carrying out the denomination's religious creed and beliefs;
- The duties do not primarily involve administrative or support functions, although limited administrative duties incidental to religious functions are permissible, and;
- Is not religious study or training for religious work.

Positions such as janitors, maintenance workers, clerical employees, fund raisers, donation solicitors, and similar positions do not qualify as religious occupations. 8 C.F.R. § 204.5(m)(5).

The prospective employer of a religious worker must attest that it has the ability and intention to compensate the foreign national at a level at which they and their dependents will not become public charges. To demonstrate how it intends to compensate the foreign national, the prospective employer must submit verifiable evidence such as:

- Past evidence of compensation for similar positions;
- Budgets showing money set aside for salaries;
- Documentation that room and board will be provided; or
- Other acceptable evidence.

Documentation from the U.S. Internal Revenue Service (IRS) such as Form W-2 or certified tax returns, must be provided if available. Where such evidence is not available, its absence must be explained and comparable, verifiable documentation provided. 8 C.F.R. §§ 204.5(m)(7), (10).

## II. ANALYSIS

The Petitioner seeks classification as a religious worker to work in a religious occupation at [redacted]  
[redacted] Connecticut. The evidence indicates that this position would be responsible for overseeing the family ministry program at the church and would report directly to the Senior Pastor.

In her decision, the Director concluded that the Petitioner had not established that he had been continuously employed as a religious worker in a full-time, compensated position in the two years immediately preceding the filing of his petition. Specifically, the Director noted that USCIS records did not show that the Petitioner was authorized to work in the United States during this period, and that a previous petition on his behalf seeking classification as a non-immigrant religious worker had been denied.<sup>1</sup>

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<sup>1</sup> USCIS records show that that petition was not filed by [redacted] but by a different church.

On appeal, the Petitioner does not contend that he was authorized to work during this period, but he correctly notes that following the ruling in *Shalom Pentecostal Church v. Acting Secretary DHS*, 783 F.3d 156 (3d. Cir. 2015), USCIS issued a policy memorandum stating that petitions for special immigrant religious workers would no longer be denied based upon the lawful status requirements at 8 C.F.R. §§ 204.5 (m)(4) and (11). See 6 USCIS Policy Manual H.2(C)(2) n. 58, [www.uscis.gov/policy-manual](http://www.uscis.gov/policy-manual). As this was the sole basis for the Director's conclusion, we withdraw the decision.

While the Director's sole reason for denying the petition is withdrawn, we do not conclude that the Petitioner has established eligibility for the requested immigration benefit. On remand, the Director should consider whether other aspects of the two-year religious work experience requirement have been established, including whether the evidence establishes that the Petitioner continuously worked for [ ] on a full-time basis during the relevant period. Also, the Director should determine whether [ ] has demonstrated how it intends to compensate the Petitioner, particularly in light of the amount of its past compensation to the Petitioner and the new assertions made on appeal. Finally, the Director should review the evidence regarding the duties of the proposed position with [ ] and consider whether they primarily relate to a traditional religious function, clearly relate to or involve inculcating or carrying out the denomination's religious creed and beliefs, and do not primarily involve administrative or support functions. When reconsidering the petition, the Director should evaluate the entirety of the record, including the new evidence submitted with the Petitioner's appeal.

**ORDER:** The Director's decision is withdrawn. The matter is remanded for the entry of a new decision consistent with the foregoing analysis.